saw the picture and recognized it as his son, Farooq Ahmed Khan, who had been picked up by soldiers in a Gypsy two months earlier. His body was finally exhumed more than a year later.

On 20 April 2004, the 18th Rashtriya Rifles posted in the Lolab valley claimed they had killed four foreign militants in a fierce encounter. It later turned out that all four were ordinary labourers from Jammu, hired by the Army and taken to Kupwara. An anonymous letter tipped off the labourers' families who travelled to Kupwara and eventually had the bodies exhumed.

On 9 November 2004 the Army showcased forty- seven surrendered 'militants' to the press at Nagrota, Jammu in the presence of the General Officer Commanding XVI Corps and the Director General of Police, J&K. The J&K police later found that twenty- seven of them were just unemployed men who had been given fake names and fake aliases and promised government jobs in return for playing their part in the charade.

These are just a few quick examples to illustrate the fact that in the absence of any other evidence the police's word is *just not good enough.*

The hearings in the fast-track trial court began in 2002. May Let's not forget the climate in which the trial took place. The frenzy over the 9/11 attacks was still in the air. The US was gloating over its victory in Afghanistan. Gujarat was convulsed by communal frenzy. A few months previously, Coach S-6 of the Sabarmati Express had been set on fire and fifty-eight Hindu pilgrims had been burned alive inside. As 'revenge', in an orchestrated pogrom, more than 2000 Muslims were publicly butchered and more than 1,50,000 driven from their homes.

For Afzal, everything that could go wrong went wrong. He was incarcerated in a high-security prison, with no access to the outside world, and no money to hire a professional lawyer. Three weeks into the trial the lawyer appointed by the Court asked to be discharged from the case because she had now been professionally hired to be on the team of lawyers for S.A.R. Geelani's defence. The Court appointed her junior, a lawyer with very little experience, to represent Afzal. He did not once visit his client in jail to take instructions. He did not summon a single witness for Afzal's defence and barely cross-questioned any of the prosecution witnesses. Five days after he was appointed, on 8 July, Afzal asked the court for another lawyer and gave the court a list of lawyers whom he hoped the court might hire for him. Each of them refused. (Given the frenzy of propaganda in the media, it was hardly